

Church Commissioners (Assistance for Priority Areas) Measure 1988

1988 No. 2

A Measure passed by The General Synod of the Church of England to extend the power of the Church Commissioners to make grants or loans in respect of church buildings in certain areas which are not sufficiently supplied with suitable church buildings and to enable the Church Commissioners to make grants or loans to the Church Urban Fund. [3rd May 1988]

Meaning of
"recent housing
development" in
New Housing
Areas (Church
Buildings)
Measure 1954.
1954 No. 1.

1.—(1) In section 1 of the New Housing Areas (Church Buildings) Measure 1954 (powers of Commissioners to make grants or loans in respect of church buildings in certain areas in which recent housing development has taken place), in subsection (6)—

(a) for the words from the beginning of the subsection to "population of the area" there shall be substituted the words—

"In this section "recent housing development", in relation to any area, means the provision in that area, during the period of twenty-five years immediately preceding the date of the receipt by the Commissioners of a request made under subsection (2) above with respect to that area, of new dwellings on such a scale as, in the opinion of the Commissioners, to have resulted in a substantial increase during that period in the resident population of the area";

(b) the proviso to that subsection shall cease to have effect.

(2) The amendment by subsection (1) above of the 1954 Measure shall not affect the powers of the Commissioners in relation to any request received by them under that Measure before the date on which this section comes into force.

Grants or loans in
respect of church
buildings in
certain areas
affected by social
or economic
changes.

2.—(1) Where in the case of any area it appears to the Commissioners that, owing to social or economic changes in the area (other than recent housing development within the meaning of the 1954 Measure), the area is not sufficiently provided with suitable church buildings of any description and that it is expedient for the Commissioners to exercise their

powers under this section, the Commissioners shall have power, subject to the provisions of this section, to make payments, whether by way of grant or loan, for or towards the provision in that area of one or more church buildings of the description in question.

(2) The provisions of subsections (2) to (7) of section 1 of the 1954 Measure shall apply in relation to powers exercisable by the Commissioners under subsection (1) above as they apply in relation to powers exercisable by the Commissioners under that Measure.

(3) In section 2(1) of the Sharing of Church Buildings Measure 1970 (which enables the powers of the Commissioners under the 1954 Measure to be exercised in relation to shared church buildings) after the words "New Housing Areas (Church Buildings) Measure 1954" there shall be inserted the words "and section 2(1) of the Church Commissioners (Assistance for Priority Areas) Measure 1988."

3.—(1) The Commissioners shall have power at their discretion to make payments out of their general fund, whether by way of grant or loan, to the company registered under the Companies Act 1985 and known as the Church Urban Fund.

Grants or loans to the Church Urban Fund.
1985 c. 6.

(2) Any payment made by the Commissioners by way of loan in exercise of their powers under this section may be made repayable by instalments or otherwise and either free of interest or subject to the payment of interest at such rate as the Commissioners may think proper.

4.—(1) This Measure may be cited as the Church Commissioners (Assistance for Priority Areas) Measure 1988; and the 1954 Measure and this Measure may be cited together as the Church Commissioners (Assistance for Priority Areas) Measures 1954 and 1988.

Citation, interpretation and commencement.

(2) In this Measure "the Commissioners" means the Church Commissioners and "the 1954 Measure" means the New Housing Areas (Church Buildings) Measure 1954.

1954 No. 1.

(3) This Measure shall come into force on such day as the Archbishops of Canterbury and York may jointly appoint and different days may be so appointed for different provisions.